

**Law & Motion
Add On**

15. 9:00 AM CASE NUMBER: C24-01939

CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV

***HEARING ON MOTION IN RE: SET ASIDE & VACATE JUDGMENT OF DISMISSAL ON THE GROUNDS OF UNDUE INFLUENCE & LACK OF CAPACITY**

FILED BY:

TENTATIVE RULING:

Plaintiff Special Administrator of the Estate of Nickolai F. Popov, Michael Popov “Special Administrator”), filed a Motion to Set Aside And Vacate Judgment Of Dismissal On The Grounds Of Undue Influence And Lack Of Capacity (“Motion to Vacate”) in this matter on April 14, 2025. The Motion to Vacate was initially set for hearing on August 04, 2025.

As noted in a prior tentative ruling, at the hearing on August 4, 2025, the Court continued this motion to November 10, 2025, after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, in a related Probate matter, Case No. P25-00516 (the “Probate Case”).

The Court later continued the hearing on Motion to Vacate (and another pending motion, the Motion to Stay by Alexander Popov) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

At the hearing on January 26, 2026, this Court again continued the Motion to Vacate until after the Probate hearing regarding the special administrator of the Estate of Nickolai Popov on January 27, 2026.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the “Solano County Criminal Proceedings”), continuing the next hearing to August 4, 2026.

The Court finds that it is necessary and appropriate to stay this case considering the Solano County Criminal Proceedings and the ruling by the Court in the Probate Case.

The **Court GRANTS the Motion to Stay.**

The Court set a status conference regarding the status of the Criminal Proceedings and the Probate Case on August 08, 2026, at 8:30 am in Department 34.